

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liabile-D excess burden	Gross outcome error	Total expenditures
American	0.239	0.163	0.004	0.258	0.218
Trial Fee-Shifting	0.274	0.116	0.004	0.262	0.187
Complete Fee-Shifting	0.288	0.136	0.081	0.274	0.301